

Non-solvency II Firms - Allocation of Responsibilities

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1

Application and Definitions

1.1

Unless otherwise stated, this Part applies to a [*small non-directive insurer*](#).

- 07/03/2017

1.2

In this Part, the following definitions shall apply:

[*small non-directive insurer prescribed responsibility*](#)

means each of the responsibilities in [3.1](#).

- 07/03/2017

2

Allocation of Responsibilities

2.1

A [firm](#) must allocate each of the [small non-directive insurer prescribed responsibilities](#) to one or more [persons](#) who, in relation to that [firm](#), are approved under section 59 of [FSMA](#) by either:

1. (1) the [PRA](#); or
2. (2) in relation to [relevant senior management functions](#) only, the [FCA](#).

- 07/03/2017

2.2

1. (1) A [firm](#) must have and maintain up-to-date records of the significant responsibilities allocated to each of those [persons](#), including those allocated in accordance with [2.1](#).
2. (2) A [firm](#) must retain the records in (1) for six years from the date on which they were superseded by more up-to-date records.
3. (3) A [firm](#) must comply with (2) in relation to any record created in accordance with [SYSC 2.2.1R](#) of the [PRA Handbook](#) as at 31 December 2015.

- 07/03/2017

2.3

The [firm](#) must provide the [PRA](#) with a copy of the records in 2.2 upon request.

- 07/03/2017

3

Prescribed Responsibilities

3.1

Each of the responsibilities set out in this rule is a [small non-directive insurer prescribed responsibility](#):

1. (A1) responsibility for the [firm's](#) performance of its obligations under the [senior management regime](#) (PR A);
2. (A2) responsibility for the [firm's](#) performance of its obligations under the [certification regime](#) (PR B);

3. (1) responsibility for providing the [governing body](#) with an up-to-date business plan and all relevant management information (PR T1);
4. (2) responsibility for management of the [firm's](#) financial resources (PR CC);
5. (3) responsibility for ensuring the [governing body](#) is kept informed of its legal and regulatory obligations (PR DD); and
6. (4) responsibility for the oversight of systems and controls, along with risk management policies and procedures, that are proportionate to the nature, scale, and complexity of the risks inherent in the [firm's](#) business model (PR GG).

- 10/12/2018
- [Past version of 3.1 before 10/12/2018](#)